



Notification Waiver Determination

Jungheinrich Australia - All Lift

Acquisition	Jungheinrich Australia Holdings Pty Ltd (Jungheinrich) applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in All Lift Equipment Sales Pty Ltd and Kretchmer Holding Co Pty Ltd, including their respective subsidiaries (together, All Lift), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 August 2026

Parties to the Acquisition	The acquirer, Jungheinrich, is a wholly owned subsidiary of Jungheinrich AG, a global original equipment manufacturer (OEM) of forklifts and other industrial trucks, warehousing technology and automation solutions. In Australia, Jungheinrich (via its wholly owned subsidiary, Jungheinrich Australia Pty Ltd) sells the following products on a retail (i.e., to end-customers) and wholesale basis (i.e., to dealers, distributors and rental providers): a. forklifts manufactured by Jungheinrich, TCM, Manitou and EP Equipment; b. telehandlers manufactured by Manitou; and c. access equipment manufactured by Manitou. Jungheinrich also rents its products at the retail level and provides spare parts, maintenance, repair services and warehousing and automation solutions to customers. Jungheinrich supplies its products and services across Australia. The target, All Lift, is a non-OEM national rental provider of third-party forklifts, telehandlers and access equipment on a retail basis. All Lift also provides spare parts, maintenance and repair services. All Lift's branches are located in New South Wales, Victoria, Queensland and South Australia, but it also services customers in Western Australia, Tasmania and the Northern Territory where commercially feasible. Both parties sell and rent forklifts, telehandlers, access equipment and related services to customers in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is a limited horizontal overlap between Jungheinrich and All Lift in both the sale and rental supply of forklifts, telehandlers, access equipment and related services at state and national levels, as the parties' respective business models and customer propositions differ - the parties' combined shares in both the sale and rental supply of forklifts, telehandlers, access equipment and related services at state and national levels are low to moderate - there are alternative suppliers (for sale and for rent) of forklifts, telehandlers, access equipment and related services at state and national levels - there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
--	--

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act